

TENTATIVE RULING FOR AUGUST 28, 2026
Department R17
BEFORE THE HONORABLE JANET M. FRANGIE
(sitting on assignment)

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court's website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling (909) 285-3753 or telephoning the department at 909-285-3732] If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVRS2505511	<i>Day Creek Square Homeowners Association v. Larry Gallardo, et al</i>	Plaintiff's Request for Entry of Default Judgment

Tentative Ruling:

The Court has read and considered the Declarations in support of a default judgment and rules as follows:

1. Defaults were entered against Defendants Larry Gallardo and Jeremie Marina Gallardo on March 18, 2026.
2. Plaintiff is requesting that judgment be entered in favor of it and against defendants and asks for the following relief:
 - a. That the assessment lien be foreclosed upon against defendants and that damages in the amount of \$10,915.39, and attorney's fees and costs in the amount of 32,454.72 be awarded; and
 - b. That the property be sold and the lien collected and for more specific relief as requested in the proposed Judgment.
3. The Court awards damages in the amount of \$10,915.39 and Plaintiff is entitled to foreclose on the lien.

4. The statutes involved in this type of action allow for the recovery of reasonable attorney's fees. In determining what constitutes reasonable compensation for an attorney who has rendered services in connection with a legal proceeding, the trial court has broad discretion and wide latitude, and the court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. *PICM Group, Inc. v. Drexler* (2000) 22 Cal. 4th 1084, 1095.

"The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom (citations), and this includes the determination of the hourly rate that will be used in the lodestar calculus. (See, e.g., *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 700–703 [172 Cal. Rptr. 3d 456].) In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees (*Heritage Pacific Financial, LLC v. Monroy (Heritage)* (2013) 215 Cal.App.4th 972, 1009 [156 Cal. Rptr. 3d 26]), the difficulty or complexity of the litigation to which that skill was applied (*Syers Properties*, at p. 700; accord, *Moreno v. City of Sacramento* (9th Cir. 2008) 534 F.3d 1106, 1114), and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (*Heritage*, at p. 1009.)" *569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App. 5th A426, 437.

The Court determines that Plaintiff is the prevailing party and is entitled to an award of *reasonable* attorneys' fees. The Court has scrutinized the supporting Declarations and the billing and reviewed the Court's file and the pleadings. However, the Court does not find that the amount of legal fees requested is reasonable. This is a standard collection case in the context of payment of homeowner's dues owed by owners of property. There appears to have been an inordinate amount of legal fees incurred for a period of approximately fourteen months before the action was filed. There was only one court appearance (prior to this hearing). The defendants were defaulted and no discovery was conducted. The billing itself is replete with duplicate entries, including conferences and reviews that appear unnecessary. Most of the entries consist of non-legal services, that should be attributed to overhead. Each month the file was extensively "reviewed" when the ledger for what was owed just shows no payment was made and is computer generated. Some of the services performed by the legal assistant, while appropriate to that position, are more administrative than legal.

Considering the factors stated above and the Court's exercise of discretion the Court awards attorney's fees and costs as follows:

- a. For each month the Court awards a standard two hour increment to look at the file (see that no payment was made) and meet and confer with staff and the client. This amounts to 24 months at \$430.00 per hour or \$10,750.00.

b. The Court awards the additional amount of \$8,262.50 for additional legal work gleaned from the billing entries. The chart below summarizes the amount of fees awarded for each month.

MONTH/YEAR	AMOUNT
March, 2024	\$ 430.50
May, 2024	\$ 129.00
June, 2024	\$ 86.00
July, 2024	\$ 21.50
August, 2024	\$ 238.50
September, 2024	\$ 281.50
October, 2024	\$1356.50
November, 2024	\$ 86.00
December, 2024	\$ 350.00
January, 2025	\$ 285.50
February, 2025	\$ 864.00
March, 2025	\$ 45.00
May, 2025	\$ 430.00
June, 2025	\$1206.00
July, 2025	\$ 307.00
August, 2025	\$ 365.50
September, 2025	\$ 129.00
December, 2025	\$ 473.00
January, 2026	\$ 132.50
March, 2026	\$ 874.50
April, 2026	\$ 171.00
Subtotal	\$8262.50

c. The Court awards the amount of \$1,290.00 in additional legal fees to prepare the default pleadings and appear at the hearing.

d. The Court awards the paralegal fees in the amount of \$2,375.00 and the costs of the status reports in the amount of \$625.00.

In summary, the Court finds the *reasonable amount of attorney's fees* to be recoverable by Plaintiff in this action is \$20,302.50. Paralegal fees of \$3,000.00 are awarded, which includes the preparation of the status reports. Collections costs of \$2,390.82 and court costs of \$499.90 are likewise awarded.

Judgment is entered in favor of Plaintiff Day Creek Square Homeowners Association and against Defendants Larry Gallardo and Jeremie Marina Gallardo for foreclosure of lien, as provided in the proposed Judgment submitted, plus damages in the amount of \$10, 915.39, attorney's fees in the amount of \$20,302.50, paralegal fees in the amount of \$3,000.00, collection costs in the amount of \$2,390.82 and court costs of \$499.90 for a total of \$37,108.61.